



CHAPTER iii.

An Act for authorising the Kidderminster Gas Light and Coke Company to alter their name to construct new gasworks to provide for the conversion and consolidation of certain of their existing capital to raise additional capital and for other purposes.

A.D. 1906.

[29th May 1906.]

WHEREAS by the Kidderminster Gas Act 1867 (herein-after referred to as "the Act of 1867") the Kidderminster Gas Light and Coke Company (herein-after referred to as "the Company") were incorporated and authorised to supply gas within the parish of Kidderminster borough the parish of Kidderminster Foreign (except the hamlet of Wribbenhall) the parish of Stone and the parish of Wolverley all in the county of Worcester and by that Act the capital of the Company was fixed at thirty thousand pounds whereof twelve thousand pounds was to be called original capital bearing interest at the maximum rate of ten pounds per centum per annum and eighteen thousand pounds additional capital of which latter sum of eighteen thousand pounds additional capital the sum of three thousand six hundred pounds was to be created and issued as preference stock bearing a perpetual fixed dividend of five pounds per centum per annum and fourteen thousand four hundred pounds the remainder of such additional capital bearing interest on so much thereof as should consist of ordinary shares at the maximum rate of seven pounds per centum per annum and the Company were authorised to borrow on mortgage to the extent of six thousand pounds:

And whereas the Company have created and issued the said share capital and the whole thereof has been paid up:

[Price 1s. 6d.]

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And whereas the Company in exercise of their powers borrowed on mortgage the full sum of six thousand pounds :

And whereas the Company have converted five thousand nine hundred and forty pounds part of their loan capital into share capital to the like amount the whole of which has been subscribed :

And whereas the capital of the Company now consists of the following sums videlicet :—

Seventeen thousand nine hundred and forty pounds ordinary stock and shares (consisting of twelve thousand pounds original capital and five thousand nine hundred and forty pounds converted loan capital) with a maximum dividend of ten pounds per centum per annum and fourteen thousand four hundred pounds ordinary shares with a maximum dividend of seven pounds per centum per annum making in all the sum of thirty-two thousand three hundred and forty pounds ordinary stock and shares ;

Three thousand six hundred pounds preference shares with a perpetual fixed dividend of five pounds per centum per annum ;

Sixty pounds borrowed on mortgage :

And whereas it is expedient to alter the name of the Company to the Kidderminster Gas Company :

And whereas the demand for gas within the limits of supply of the Company has increased and is increasing and it is expedient that the Company should be authorised to extend and improve their existing gasworks as in this Act provided :

And whereas it is expedient that provision should be made as in this Act contained for the conversion and consolidation of the thirty-two thousand three hundred and forty pounds ordinary stock and shares of the Company into consolidated ordinary stock bearing a uniform rate of dividend of five pounds per centum per annum and that such converted and consolidated stock should be vested in the holders of the said existing ordinary stock and shares in substitution for their present holdings :

And whereas it is expedient that the Company should be authorised to raise additional capital and to apply the same for the purposes of this Act and for the general purposes of their undertaking :

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And whereas it is expedient that some of the provisions of the Act of 1867 should be amended or repealed and that such further powers should be conferred upon the Company as are in this Act provided:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited for all purposes as the *Kidderminster Gas Act 1906* and the Act of 1867 and this Act may be cited together as the *Kidderminster Gas Acts 1867 and 1906*. Short title.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act namely:— Incorporation of general Acts.

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words following were added at the end of the said section (that is to say) “Provided that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers”:

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of [the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

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The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) Part III. (relating to debenture stock) and Part IV. (relating to change of name) of the Companies Clauses Act 1863 as amended by subsequent Acts:

And the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement).

Interpre-
tation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Alteration of
name of
Company.

4. On and as from the first day of January one thousand nine hundred and seven the name of the Company shall be and the Company shall be called and known as "The Kidderminster Gas Company" instead of "The Kidderminster Gas Light and Coke Company" as provided by section 6 of the Act of 1867.

Powers as to
construction
and mainten-
ance of gas-
works &c.

5. Subject to the provisions of this Act the Act of 1867 and the incorporated Acts the Company may upon the lands described in the First Schedule to this Act maintain alter improve enlarge extend and renew or discontinue the existing gas and other works and may upon the lands described in the Second Schedule to this Act erect construct lay down provide maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retort houses retorts gasholders purifiers mains pipes machinery and other apparatus works and conveniences for the manufacture of gas and convert or utilise and distribute materials used in and about the manufacture of gas and of residual products resulting from such manufacture and upon the said lands described

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in the schedules aforesaid they may accordingly manufacture gas and manufacture convert utilise and distribute such materials and residual products as aforesaid and also on those lands store gas and erect houses and other buildings and the Company may also from time to time provide lay down maintain alter improve enlarge extend and renew or discontinue drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such other acts as they may think proper for making storing and supplying gas within the limits of supply of the Company and may supply gas accordingly and may deal in and sell and dispose of coal coke tar pitch lime ammoniacal liquor oil and all other residual and manufactured products and other matters and things employed in arising or resulting from the manufacture of gas and carry on the business usually carried on by gas companies or by companies or persons dealing in any of the matters and things aforesaid.

6. The Company may on the application of the owner or occupier of any premises within their limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite for the furnishing such supply.

Power to lay pipes in streets not dedicated to public use.

7. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedules to this Act any lands and hereditaments not exceeding in the whole twelve acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no such lands shall be used for the purpose of manufacturing gas or residual products except the lands described in the said schedules to this Act.

Power to purchase land by agreement.

8. The Company may in addition to any other lands which they are by this Act authorised to acquire purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may upon any lands for the time being belonging or leased to the Company erect and maintain buildings for any of the said purposes and may let the same on such terms as they may think fit.

Dwelling-houses for persons in Company's employ.

9. The Company may sell and dispose of or may let on lease for such period as they think fit any lands for the time being

Power to sell and lease lands.

A.D. 1906. belonging or leased to them and which may not at the time be required for the purposes of their undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit And notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section.

Conversion
of existing
original and
additional
shares of
Company.

10. On and as from the first day of January one thousand nine hundred and seven all the ordinary stock or shares consisting of thirty-two thousand three hundred and forty pounds in the existing capital of the Company shall by virtue of this Act and without further or other requisite be converted and consolidated into fifty-six thousand and forty pounds consolidated ordinary stock bearing an uniform dividend at the rate of five pounds per centum per annum which stock shall be distributed amongst the holders at such date of the existing stock and shares according to the following scale respectively (that is to say):—

For every one hundred pounds of ordinary stock or shares entitled to a dividend not exceeding the rate of ten pounds per centum per annum two hundred pounds consolidated ordinary stock:

For every one hundred pounds of ordinary shares entitled to a dividend not exceeding the rate of seven pounds per centum per annum one hundred and forty pounds consolidated ordinary stock:

And so on in proportion for any less quantity than one hundred pounds of the aforesaid existing stock or shares in the capital of the Company:

And as from that date there shall be by virtue of this Act created such a nominal amount of consolidated ordinary stock of the Company as shall be necessary for the purpose of carrying into effect such conversion and consolidation and the amounts of consolidated stock to which the holders of such existing stock and shares by virtue of this Act respectively become entitled in substitution for such stock or shares shall be vested in such holders as from the aforesaid first day of January one thousand nine hundred and seven and shall be forthwith registered in their respective names in the books of the Company Provided that notwithstanding anything in this Act contained no person shall

become entitled under this Act to any fractional part of a pound of consolidated ordinary stock but in every case in which such person would but for this enactment have become entitled to a fractional part of a pound of such stock the Company may at their option receive from such person such further sum in cash as will make up an even pound or pay to any such person in cash such a sum as will equal the market value of such fractional part. Provided that such conversion shall not have the effect of increasing the maximum reserve fund prescribed by section 31 of the Gasworks Clauses Act 1847 in respect of the capital of the Company so converted as aforesaid nor of increasing the renewal and insurance funds respectively provided by the sections of this Act of which the marginal notes are "Renewals" and "Insurance fund" respectively.

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11. Consolidated ordinary stock shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the existing shares for which the consolidated ordinary stock is substituted were held or were subject to immediately before the said first day of January one thousand nine hundred and seven and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing shares and trustees executors or administrators or other incapacitated parties may accept consolidated ordinary stock in substitution for existing shares held by them in the capital of the Company and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such existing shares.

Consolidated ordinary stock to be held on same trusts &c. as shares for which it is substituted.

12. The Company shall call in the certificates of the stock or shares for which consolidated ordinary stock shall be substituted by virtue of this Act and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of consolidated ordinary stock of the amounts to which those proprietors are by this Act respectively entitled but no proprietor shall be entitled to a new certificate of the consolidated ordinary stock so substituted for the existing stock or shares held by him until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and

Certificates to be called in and other issued.

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Transfer of
shares
although by
present name
to be valid.

13. All transfers or other dispositions of any existing stock or shares in the capital of the Company as existing up to the conversion thereof into consolidated ordinary stock by virtue of this Act shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of consolidated ordinary stock which the stock or shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof respectively shall describe the same by the name or denomination which the stock or shares transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any specific or nominal amount of any such existing stock or shares converted by this Act into stock of larger nominal amount shall be held to apply to a nominal amount of consolidated ordinary stock which is substituted for such existing stock or shares equal to the amount of such stock into which such existing stock or shares shall have been converted under the provisions of this Act.

Stock to be
transferable
in multiples
of one pound.

14.—(1) All consolidated ordinary stock of the Company shall be issued and be transferable only in amounts of one pound or multiples of one pound.

(2) Notice of this enactment shall be stated in all certificates of such stock. A.D. 1906.

15. Subject to the provisions of this Act sections 7 10 to 13 and 62 to 64 of the Companies Clauses Consolidation Act 1845 shall extend and apply to the consolidated ordinary stock of the Company and sections 18 to 20 of that Act shall be deemed and construed to include and apply to consolidated ordinary stock and dividends thereon as if such stock and dividends respectively had been expressly named in the said sections. Application of provisions of Companies Clauses Consolidation Act 1845.

16. Holders of consolidated ordinary stock and of shares or stock created under the authority of this Act shall be entitled to participate in the dividends and profits of the Company according to the amount of their respective interests in such stock or shares and subject to the provisions of this Act such interests shall in proportion to the nominal amounts of such stock or shares confer on the respective holders thereof the same privileges and advantages as would have been conferred by existing stock or shares of equal amount in the existing capital of the Company except as regards the scale of voting which shall be as herein-after provided. Rights of stockholders and shareholders.

17. On and as from the first day of January one thousand nine hundred and seven section 35 (Quorum of meetings) and section 38 (Voting) of the Act of 1867 shall be and are hereby repealed and at all meetings of the Company held after that date every holder of a complete sum of one hundred pounds nominal value of consolidated ordinary stock or ordinary stock or shares of the Company or partly of one and partly of the other shall be entitled to vote and shall have one vote in respect of every complete sum of fifty pounds of such stock or shares held by him and a quorum of every meeting held after such date shall be seven holders of such capital stock or shares entitled to vote at such meeting present in person or by proxy and holding not less in the aggregate than two thousand pounds nominal value of such capital stock or shares. Provided that no stockholder shall be entitled to vote except in respect of capital stock or shares which shall have been registered in his name one month at least before the date of the meeting. Votes at and quorum of meetings.

18. On and as from the first day of January one thousand nine hundred and seven section 36 (Seven shareholders may require an extraordinary meeting) of the Act of 1867 shall be read as if the words "three thousand pounds" were inserted in the place of the words "one thousand pounds." Amendment of section 36 (Seven shareholders may require an extraordinary meeting) of Act of 1867.

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Amendment
of section 32
(First and
other meet-
ings) of Act
of 1867.

19. On and as from the first day of January one thousand nine hundred and seven the ordinary meetings of the Company shall be held on the third Thursday in the month of March and the third Thursday in the month of September in every year and so much of section 32 (First and other meetings) of the Act of 1867 as is contrary to this provision shall be and is hereby repealed.

Qualification
of directors.

20. On and as from the first day of January one thousand nine hundred and seven section 40 (Qualification of directors) of the Act of 1867 shall be and is hereby repealed and as from that date the qualification of a director of the Company shall be the possession in his own right of paid-up capital of the Company to the nominal amount of not less than five hundred pounds.

Power to
raise addi-
tional capital.

21. The Company may from time to time raise additional capital not exceeding in the whole fifty-one thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any shares or stock of less nominal value than ten pounds nor shall any such shares or stock vest in the person or corporation accepting the same unless and until the full price of such shares or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the said sum of fifty-one thousand pounds.

New shares
or stock to
be offered by
auction or
tender.

22. Notwithstanding anything in this Act contained when any shares or stock created under the powers of the section of this Act of which the marginal note is (Power to raise additional capital) are or is to be issued and before offering the same to the holders of any other shares or stock in the Company and whether the ordinary shares or stock of the Company are or is at a premium or not the Company may with the approval of and in the manner directed by the Board of Trade to be signified in writing under the hand of an assistant secretary of such Board offer to the consumers of the Company's gas and to all the persons in the employ of the Company or partly to one and partly to the other of such classes of persons and in such proportions as the directors may determine the shares or stock so to be issued at such a price as will yield to the purchaser a return of not

more than five pounds per centum per annum on the amount of his purchase money. A.D. 1906.

Any shares or stock not so offered or so offered and not accepted within one month after such offer is made shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine.

Provided always that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. And provided that no priority of tender shall be allowed to any holder of stock in the Company except that if any bidding or offer by tender of any holder or holders of stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of stock shall be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock in the Company.

23. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale. Purchase money to be paid within three months.

24. The intention to sell any such shares or stock whether to consumers or to persons employed by the Company or by auction or by tender shall be communicated in writing to the town clerk of Kidderminster and to the clerks to the councils for every district wholly or partly included in the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply. Notice to be given as to sale of shares or stock.

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Disposal of
shares or
stock not
sold by auc-
tion or
tender.

25. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863. Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors in such manner as they may think fit.

Application
of premium
arising on
issue of
shares or
stock.

26. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending and improving the works and undertaking of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that all such sums shall be deemed to be part of the nominal and paid-up capital of the Company for the purpose of determining the powers of the Company to raise money by borrowing and the amounts they may place to the reserve renewal or insurance funds respectively.

Privileges
&c. of hold-
ers of addi-
tional capital.

27. Subject to the provisions of this Act the additional capital raised by the Company under this Act shall be part of the general capital of the Company and save as otherwise provided in respect of such capital by or under the provisions of this Act the holders of ordinary shares or stock in such additional capital shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their shares or stock from time to time paid up and be subject to the like provisions and liabilities as the holders of ordinary consolidated stock issued under this Act.

Restriction as
to votes in re-
spect of pre-
ference stock
or shares.

28. No person shall be entitled to vote in respect of any preference stock or shares already issued or which may be issued under this Act as preference stock or shares.

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29. On and as from the first day of January one thousand nine hundred and seven section 26 (Limiting dividend) of the Act of 1867 shall be and the same is hereby repealed.

Repeal of section 26 (Limiting dividend) of Act of 1867.

30. On and as from the first day of January one thousand nine hundred and seven the profits of the Company to be divided amongst the holders of capital of the Company whether ordinary or preference capital shall not exceed the rate of five pounds per centum per annum and such rate is in this Act referred to as the standard rate of dividend and from and after the date aforesaid such rate shall be deemed to be the prescribed rate within the meaning of the Gasworks Clauses Act 1847.

Limitation of profits.

31. The Company may subject to the provisions of this Act borrow on mortgage of their undertaking any sum or sums not exceeding in the whole one third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to borrow in respect of additional capital.

32. The Company may in respect of the powers of raising money on mortgage conferred upon them by this Act create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863.

Debenture stock.

33. Section 30 (For appointment of receiver) of the Act of 1867 shall apply to mortgages or debenture stock created under this Act provided that such section shall be read as if the words "three thousand pounds," were substituted for the words "one thousand pounds."

Application of section 30 (For appointment of receiver) of Act of 1867.

34. The provisions of this Act with respect to the sale by public auction or tender of shares and stock created under the authority of this Act the application of the premium arising from such sale and other the provisions incidental to such sale

Debenture stock &c. to be disposed of by auction or tender.

A.D. 1906. shall apply mutatis mutandis to and in relation to the granting of mortgages and issue of debenture stock by the Company under this Act.

Existing mortgages to have priority.

35. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament passed before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Application of moneys.

36. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Receipt in case of persons not sui juris.

37. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor lunatic or idiot the receipt of the guardian or committee of his estate shall be sufficient discharge to the Company.

Renewals.

38. The directors of the Company may in each year if they think fit appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes. Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth part of the paid-up capital for the time being of the Company. Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at any time reduced below such sum it may thereafter be made up to that sum and so from time to time as often as such reduction shall happen. Provided further

that resort may from time to time be had to the said fund for the purposes aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth of the paid-up capital as aforesaid. A.D. 1906.

39. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and dividend on the ordinary capital at the standard rate the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid. Insurance fund.

40. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and dividend at the standard rate on the ordinary capital of the Company the excess or such portion of it as is not carried to the reserve fund or the renewal fund or the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year. Application of excess of profits over standard rate of dividend.

41. From and after the first day of January one thousand nine hundred and seven section 63 (Maximum price of gas) of the Act of 1867 shall be and is hereby repealed and on and after that date the price to be charged by the Company for gas Repeal of section 63 of Act of 1867 and maximum price of gas.

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supplied by them to persons who shall consume the same by meter shall not at any time exceed three shillings and ninepence for one thousand cubic feet.

Repeal of
sections 64
and 65 of Act
of 1867 and
as to quality
and testing of
Company's
gas.

42. From and after the first day of January one thousand nine hundred and seven section 64 (As to quality of Company's gas) and section 65 (Company to erect a meter to test illuminating power of gas) of the Act of 1867 shall be and are hereby repealed and on and after such date and in lieu thereof the following provisions shall have effect (that is to say):—

- (A) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Company on the lands described in the schedules to this Act before supplying or within one month after beginning to supply gas under the authority of this Act:
- (B) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place herein-after mentioned a light equal in intensity to the light produced by fourteen sperm candles of six to the pound:
- (C) The burner and other apparatus to be used for testing the gas and the method and rules to be observed in the testing shall be such as are for the time being prescribed for testing the illuminating power of gas under the provisions of the London Gas Act 1905 in cases where the illuminating power required is the same as that required by this Act:
- (D) The Company shall before supplying or within one month after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure of
gas.

43.—(A) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(B) Any gas examiner appointed under the Gasworks A.D. 1906. Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the said testing place or elsewhere not being the immediate approach to any railway bridge or railway station as and when he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place vested in or under the control of any local or road authority and two hours' previous notice shall be given to the Company of the time and place at which any testing for pressure elsewhere than at the testing place will be conducted.

44. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident. Saving as to penalties.

45. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to construction and placing of pipes &c. between mains and meters.

(A) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:

(B) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(C) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:

(D) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall

A.D. 1906.

be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:

(E) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipe (with the fittings) and meter and if the officer is not permitted to make the inspection or if the pipe or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

(F) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the Court may after hearing the parties and considering any question as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Company to pay interest on money deposited as security for gas meter &c.

46. If any person is required by the Company to give security to them for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest after the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Power to supply gas fittings and fittings not to be subject to distress.

47.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all

work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed. A.D. 1906.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

48. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Power to require use of anti-fluctuators for gas engines.

49.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers through any other kind of meter or by any other method of supply. Powers as to prepayment meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include hire of meter and the fittings used therewith including cooker. The said charges shall include the providing letting fixing repairing and maintenance of the meter fittings and cooker and the cost of collection and other costs incurred by the Company in connexion with the meter fittings and cooker.

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(3) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Consumers
to give notice
to Company
before re-
moving.

50. Twenty-four hours notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Power to
refuse supply
to persons in
debt for
other pre-
mises.

51. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to
discontinue
supply of gas.

52. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Period of
error in de-
fective
meters.

53. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Company
may enter
into contracts
for supply of
gas.

54. The Company may contract with any local authority company or person beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that

district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon. Provided that the Company shall not supply gas under any such contract as aforesaid beyond the Company's limits of supply if and so long as such supply would interfere with the supply of gas within those limits. A.D. 1906.

55. Sections 45 48 to 62 66 and 67 of the Act of 1867 are hereby repealed. Repeal of sections of Act of 1867.

56. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1906. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIPTION of LANDS upon which at the date of the passing of the Act of 1867 the Company were exercising the powers given to them by section 46 (Powers as to gasworks and the supply of gas) of the same Act and upon which the existing Gasworks of the Company then stood.

A piece of land situate in the borough of Kidderminster in the county of Worcester belonging to the Company containing one acre two roods thirty-three poles and twenty-seven square yards or thereabouts bounded on the north partly by the road or way called Pitts Lane and partly by the land described in the Second Schedule to this Act on the south by land mills and buildings belonging or reputed to belong to Lea Limited on the east by the road or way called The Sling and on the west by the Staffordshire and Worcester Canal or the towpath thereto.

THE SECOND SCHEDULE.

DESCRIPTION of ADDITIONAL LANDS on which the Company may manufacture GAS and RESIDUAL PRODUCTS.

A piece of land containing one acre and ten perches or thereabouts situate in the borough of Kidderminster in the county of Worcester now belonging in part to the Company and in other parts to William John Wyley and Daniel Parkes Goodwin respectively but contracted to be sold and conveyed by the said William John Wyley and Daniel Parkes Goodwin to the Company absolutely all which piece of land is bounded on the north partly by land and buildings belonging or reputed to belong to the trustees of the Wesleyan Methodist Connexion's chapel partly by land and buildings belonging or reputed to belong to Henry Packwood and partly by land and buildings belonging or reputed to belong to Herbert Bale on the south by the land described in the First Schedule to this Act and the gasworks thereon on the east in part by the road or way called Pitts Lane in other

part by a party road belonging or reputed to belong to Herbert Bale and Charles Mitchell in other part by land and buildings belonging or reputed to belong to the said Herbert Bale and in other part by land and buildings belonging or reputed to belong to the said Henry Packwood and on the west by the Staffordshire and Worcester Canal or the towpath thereto and is now in the possession or occupation of the Company. A.D. 1906.

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